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Article

Expropriation of Land and Cultures: The Odisha Story and Beyond

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Abstract

In a state such as Odisha in which Dalit and tribal groups comprise about 40 per cent of the total population, the issue of 'access' to land and resources has apparently been central to all conflicts. For traditional communities, 'access' is directly linked to civilizational paradigms and cultural ethos, which rather decide their 'economics', and not the other way round that may be true for modern, techno-centric civilizations. Most mainstream discourses of history have, however, tried to locate the crisis in the 'absence of state interventions'. But, a dig into the social history points to deeper roots of the crisis, which rather intensified after the entry of the 'welfare' State. The article attempts to establish linkages between marginalization of traditional communities (often to the extent of cultural genocide) and the growing political articulation of the same groups in myriad ways and methods, keeping in the heart of the argument the less-talked-about processes of 'cultural appropriation'.

Keywords

Cultural appropriation, Jagannath cult, land rights, adivasi and Dalit, Maoism

In a state like Odisha in which Dalit and tribal groups comprise nearly 40 per cent of the total population [by some accounts, it is 47 per cent (Prasad, 2001)], it is

apparent that the issue of 'access' to resources (land, forests, water, etc.) is at the nerve-centre of most conflicts—social, economic, political and cultural. For traditional communities, 'access' is directly linked to civilisational paradigms and cultural ethos, which rather decide their 'economics', and not the other way round that may be true to modern, techno-centric civilisations. In traditional milieus—especially with *adivasi*s—'culture' is the larger umbrella under which social and economic behaviours come early as precious, binding lessons to each member of the community that lives as a 'collective' rather than as a complex set of individual schemes. Therefore, the chain of 'production and consumption' repeats in a balanced cycle—and, at times, in upward spiral mobility—in which the available resources (natural resources) must be consumed in such religious manner that ensures their sustainability for posterity. And, such practices bind the community and nature (resources) in an ideal symbiotic relationship.

So, in traditional milieus, denial of 'access' to resources not only results in their cultural degradation, it also directly impacts their 'food security'. It is no wonder that most hunger deaths reported from the state—in independent, democratic India—during the past three decades are those of the *adivasi*s and Dalits. Most mainstream discourses of history and politics have, however, tried to locate the crisis in the absence of 'appropriate state interventions'. But, a dig into the social history points to deeper roots of the crisis: denial of access and ownership through various social and political processes over centuries, which rather intensified after the entry of the 'welfare state'.

Odisha: Overview of the Present Status

1. 75 per cent of tribal and 67 per cent of Dalit populations live below the poverty line.
2. Poverty in South Odisha (Koraput) with higher tribal population has increased in the past three decades: 87 per cent below the poverty line.
3. 44 per cent of the area of the state is marked as Schedule-V area.
4. In the Schedule-V districts, the state holds 74 per cent of the land; 65 per cent are small and marginal landholders in possession of only 13 per cent of the land; non-*adivasi*s (15 per cent) hold 13 per cent of the land; the rest 20 per cent are landless. In Gajapati district, 93 per cent of the households (small and marginal farmers and the landless) hold only 9 per cent of the land.
5. The average size of landholdings among *adivasi*s across the state is only 1.10 standard acres.
6. The average holding size for marginal *adivasi* landowners is only 0.45 standard acres.
   (Kumar, Choudhary, Sarangi, Mishra and Behera 2005)

Historical Overview of How Traditional Communities were Denied 'Access'

Cultural Appropriation Leading to Dispossession

Cultural practices of indigenous folks are strictly guided by the laws of nature. They religiously consider themselves as part of nature, and worship Mother Earth in various forms depending on the belief system of the specific tribal group involved. These practices and beliefs, in turn, decide their economic cycles and sustenance—judiciously relying on the resources available at hand and, at the same time, dutifully ensuring that the resources sustain for posterity. Therefore, the relationship between *adivasi*s and land (including forests) is implicitly symbiotic in nature. It is no wonder that any distortion to that relationship has often spelled doom for the *adivasi*s as well as other traditional communities.

Invasion into the forests of central and eastern India by hordes of communities and clans from north and west India and adjoining states in the medieval period witnessed fierce battles over resources and lands. However, with the natives deeply rooted to their cultures, which decided their economic and ecological behaviour as religious tenets, economic colonisation was not possible—despite the blood—without colonising them culturally. And this was done broadly in two ways: (*a*) *adopt* the existing cultural practices of *adivasi*s and gradually take control of them; and/or (*b*) *impose* your own cultural and religious tenets by using royal power or by intimidating them by propagating the divine 'superiority' of a new god, such as the spread of the Jagannath cult in which thousands of temples have come up in remote, forested hinterlands of Odisha. The latter has been, over centuries, the single-most lethal process of cultural colonisation in Odisha—covertly helped by the dominant political order of the day—that continues to dispossess traditional communities of their economic bases and sustainable lifestyles even today.

The Sindhekela village in Balangir district presents the microcosm of the first type of cultural appropriation leading to economic colonisation. The local *adivasi*s here have been worshipping Goddess Duarseni since time unknown. There was no idol earlier; what they actually worship is what they call *badan khaal* (*badan* = body, *khaal* = trench), which is in fact a natural tunnel, believed by the locals to be kilometres long. To the *adivasi*s here, the *badan khaal* symbolises progeny, production and continuity—the 'soul of the soil' that nurtures life, culture and identity in and of the land and forests of the *adivasi*s.

But, you don't have to make an effort to notice that their very life-support system—the forests—have vanished since long; and a little probing would also have you discover that the ownership of the vast stretches of farmlands all around (where a dense forest stood earlier) is now with non-*adivasi*s, including Brahmin landlords and Marwadi traders. The milieu of the *adivasi*s, as though, has shrunk into a space as much as that of the *badan khaal* acquires.

A peep into the socio-cultural history of the region further unravels the paradox. About one-and-half century back, the erstwhile king of the princely state of Patna (today's Patnagarh) sent one of his kin to rule the region. But, the bloody history of valiant battles over 'controlling resources' between tribes—and more often between tribes and non-tribal groups—in medieval central India had the rulers enlightened about a precious lesson in practising feudalism: instead of confronting physically, take control of the 'culture' of *adivasi*s, and their 'resources' are yours!

So, the first task the new ruler took upon himself was to 'patronise' the rituals of Duarseni in the guise of an upholder of *adivasi* culture. Gradually—and predictably—the Kondhs were debarred from the village. A religious legend was created in which, 'Kondhs cannot own land, nor can they build houses and stay there in the village, barring a few—the Dal Kondhs (the priests)'. So, you do not find them now within a radius of 5 kilometres from the Duarseni temple. With the economics of the rituals falling into alien hands, the political economy of natural resources underwent huge alterations. Communities of all hues arrived here and usurped the land and forests of the *adivasi*s. And, to accommodate the 'outsiders' in the existing belief systems (meaning, in the share of the resource loot), roles were defined for sundry communities while only a tiny section of Kondhs—the Dal Kondhs—were allowed to stay back and perform the main rites.

(Interestingly, along with the Kondhs, Muslims have also been debarred from the village. It is said that the war force of the Chauhan dynasty that ruled the region from Patna was joined by a huge contingent of Muslim soldiers who were brought by the king from north India a few centuries back. Now their descendants are settled in various parts of the region, though very few in numbers. Since Muslims are considered great warriors—and so are the Kondhs—it is rather obvious for them to be debarred, especially for the fact that the new king in Sindhekela with a weak war force would not have liked to have the presence of any such community that could potentially revolt and effectively defeat him.)

Post independence, the onset of democracy rather opened up new opportunities for landlords and traders. As their social and political dominance gained legitimacy with the abolition of kingship, their grip over the *adivasi* culture further tightened up. And, the biggest casualty was the disappearance of the dense forests—'in which tigers used to jump', as Halu Thanapati, the *patdehri* (chief priest) of the Duarseni temple says—which was cleared on massive scales to make way for more farmlands for the new lords. The 'dark and dense jungle' was relegated into mere images—intriguing though—in folklores, and so is the livelihood base of traditional communities.

Although the ecology that was directly linked to the tradition now stands decimated, the *adivasi*s have tried their best to keep it alive. Today, the *adivasi*s walk up (about 75 kilometres) for three days to the Chhattardandi forest and walk down for as many days in the process of collecting one specific kind of bamboo stick essential to the annual rituals. The *Ganher* trees, branches of which is used by the locals to make a delicious cake—one of the sixteen items offered to the

goddess—are now few and far between. So, ironically, what Goddess Duarseni once stood to protect and sustain for posterity for all life forms is today metamorphosed into vast tracts of revenue-generating assets, owned by a tiny set of individuals. Even hundreds of hectares of land originally attached to the Duarseni temple are now owned by landlords and traders whereas those who had a cultural and symbiotic relationship—existential imperatives—with the land possess very little or nothing.

There are countless such examples so as to understand the whole political economy of cultural appropriation in India as a tool for not only resource-grab but also 'internal economic colonisation'. If we go back a bit farther in history, the imperatives of 'resource-control'—after the Aryans' invasion into India's hinterlands—had become so impeccable that communities who actually were in possession of lands, and were arguably the original farmers, had to be completely forced out of the new socio-political order and space, and were labelled 'untouchables'. Ages later, in 'democratic' India, they are still denied that space!

In the second type of cultural appropriation, the main weapon of subjugating the natives was not only in establishing Hindu shrines (such as Jagannath temples) as the new 'power centres', it also involved constructing new myths around existing religious beliefs of the natives in attempts to homogenise all traditional communities into the mainstream Hindu hierarchy. In the Kalahandi–Koraput–Balangir (KBK) region in Odisha, Brahmins had already made their ways into kings' *durbars* (courts) as advisors or ministers long centuries back, thereby forming a lethal alliance between the ruling class and the elite gentry, which not only took control—by force or sly—of the whole of people's resources, it also ruthlessly imposed on the natives cultural behaviours that weakened the strength of the latter and strengthened the dominance of the former.

Apart from these Brahmins in kings' courts, influx of the 'outsiders'—non-Brahmins as well as non-courtier Brahmins—to the region had, however, intensified in the beginning of the 19th century. It is no wonder that, in the second half of that century, this region endowed with rich natural resources and advanced farming practices was hit by famine for the first time in history, which became a routine feature thereafter. And, the precise reason was cultural appropriation leading to change of hands in controlling local resources around the new 'power centres'—always in agreement with the dominant political order of the day, which, in turn, strengthened and widened the process of internal economic colonisation by introducing the natives to a kind of 'market' that they could not comprehend fully, let alone having a hand in controlling it, and by making inroads for modern tools, such as railway links. This resulted in sudden dispossession and perpetual deprivation of the natives. Today, the affluent communities of the region are unfailingly represented by those who have migrated there during the past two centuries. And it is a travesty of history that the aborigines—*adivasi*s and Dalits—are the ones who now lend the region the dark identity of being 'hunger-ridden' and 'backward'. Ironically, this was the region believed to be where the rice seed was first invented by the same aborigines through traditional farm practices.

Post independence, myriad development projects added further woes to the wounds, by accelerating the rate of ecological distress. Appropriation of cultural ethos of traditional communities not only translates into decimation of natural resources, it also makes way for modern tools to come in to multiply profits, leading to irreversible ecological damage, which, in the process, impels pauperisation of traditional communities—akin to cultural genocide! (Sahu, 2011).

The British and the Kingship

It was not easy for the British to take control of the land and resources where traditional communities resided—especially central India, which included most of tribal Odisha—without taking the existing feudal structure on their side. So, the kings and *zamindar*s—who had been spearheading the process of cultural appropriation along with Brahmins—became the obvious allies of the Raj in the structural assault on traditional communities and their resources. Under the British rule, which made its presence in the state in the second half of the 18th century, there were broadly three systems of 'revenue assessment', essentially meaning 'resource-control':

1. The *zamindari* system: most of the coastal Odisha and Angul district—landholder could sublet the land to tenants, the latter with no legal protection.
2. The *ryotwari* system: Sambalpur region—rights of the landholder were controlled by the executive.
3. The domain of princely states: 24 princely states in Odisha—the same *zamindari* system with the supreme power in the hands of the kings (Patnaik, 2008).

However, it was the Permanent Settlement Act of 1894 that blew the hardest blow on the traditional economic structure. Till then, traditional communities did not know of the concept of 'individual' land ownership. The Act simply shattered the social and cultural exigency of collective living and the sustainable, 'inclusive' economic structures traditional communities had long established, drawing wisdom from the laws of nature. With a single stroke, the very livelihood basis of traditional communities was turned into 'assets' as defined by the state and 'ownerships' attached as decided by the state. More importantly, overnight, women—who naturally played equal roles in all walks of social and economic systems—were rendered second-class citizens, because the land—if entitled to—was recorded in the name of the man of the household. Many tribal groups are still not in acceptance of this concept of individual ownership, as they cannot accept Mother Earth being torn into pieces, with each piece demarcated by a boundary all around and sanctified by a piece of paper.

The 1894 Act further strengthened the foothold of big landholders, as traditional communities neither were very receptive of this concept nor were equipped

to go through the process of official formalities to have their land recorded in their names. So, land actually in possession of *adivasi*s and Dalits in most places officially fell into the hands of non-*adivasi*s who grew into being very influential in the changing socio-political scenario post Independence. In the tribal heartland of Odisha, mostly these landlords are the ones who now represent both the legislatures and the executives. So, democracy, in a way, sanctified the historical process of cultural appropriation and land-grab, and further alienated *adivasi*s and Dalits from the much-celebrated 'nation state'.

Post Independence

While the process of cultural appropriation of the *adivasi*s continued in independent India, land-grab—both forced and by means of sly—did not stop either. In Mursing village in Balangir district, for example, a Jagannath temple built only in recent years has further been refurbished using joint forest management (JFM) funds, in the name of 'forest protection'. Since the temple is now 'protecting' the forests, which are the livelihood base of local *adivasi*s, the latter are unwittingly sucked into an alien temple system. Suddenly deprived of their cultural space, the *adivasi*s are fast drawn away from their sustainable ways, thereby losing their life-supporting grounds—including farmlands—to non-*adivasi*s. And, while mainstream Hindus from far-flung places rush there to offer prayers putting extra burdens on the local resources, the forest is being clear-felled by timber traders, right under the nose of the Forest Department.

The story of Rampur village in Sonepur district is striking in the sense that it tells the story of most villages in Odisha. One-and-a-half century back, the village demography was characterised by *adivasi*s (mainly Saoras and Binjhals among others) and Dalits. Social history, as corroborated by a few residents, says that, by 1935, more than 70 per cent of the village farmlands still belonged to *adivasi*s and Dalits. This is besides the forest that addressed part livelihoods. During the past century, two major events have turned the wheel in different directions: first came a Jagannath temple, and then, in the 1960s, came irrigation water from the Hirakud Dam. As a result, five major changes swept the village: continuous influx of non-*adivasi*s (Kuilta, Sunrhi, Brahmin, etc.) who settled there for good; the forest disappeared; Goddess Chandlipat, the local deity, was replaced by Lord Jagannath as the dominant religious phenomenon in the collective psyche; hooch made available; cash crops took over traditional crops.

Today, *adivasi*s and Dalits own only 2 per cent to 5 per cent of the village farmland. Farmland to the tune of 50 acres is attached to the Jagannath temple alone, 'managed' by a few Brahmin families. *Adivasi* population in the village has reduced substantially, indicating the degree of dispossession and destitution they have suffered after being thrown off their traditional economic life.

Koraput offers rather a starker mirror to the travesty: If you stand atop a hill and look down to the hilly Koraput town, what is most prominent in the landscape

is the towering Jagannath temple in the middle; and, more conspicuously, the absence of any sign of an *adivasi* milieu that would have ever existed there. To the right is the Upper Kolab Dam that has drowned nearly 12,000 hectares of primary forests and the livelihood base of tens of thousands. To the left is the never-ending stretch of a hill range that has gone barren after National Aluminium Company Limited (NALCO) started digging them for bauxite some 25 years back. And the result: the local ecology that had sustained millions of life forms for thousands of years has vanished forever!

In the process of cultural appropriation leading to dispossession of land, the introduction to and spread of cooked country liquor—hooch—among *adivasi*s and Dalits have always played a major role. The bootleggers—mainly the Sunrhi community—would take up the task of replacing traditional drinks such as toddy, *salpa*, etc., with hooch, which the *adivasi*s would 'buy' from the former. Once addicted to such alien spirits, the production of which is not in the control of the *adivasi*s, their lives eventually come in control of the bootleggers. Moreover, such alien drinks do not go well with the food habit of the *adivasi*s and Dalits and, therefore, the addiction becomes strong and results in health hazards. All this sets a perfect trap for the traditional people to come under tremendous economic pressure, for primarily two reasons: (*a*) the imperatives of spending money for the liquor, which was not the case with the traditional drinks they were used to earlier; and (*b*) the expenses for the treatment of unknown ailments that come with the addiction of the alien spirit. And, such economic pressure leads to borrowing money from landlords and moneylenders, which eventually leads to giving away land to the bootleggers or the landlords or the moneylenders—completing a cycle of exploitation in which *adivasi*s and Dalits end up in complete dispossession and perpetual deprivation.

However, amidst the loot of resources of traditional communities, the state has continuously posed itself as the benign saviour by putting in places various rules and legislations. None of them, of course, has been put to practice in letter and spirit.

Some important land legislation in Odisha

1. Orissa Estate Abolition Act, 1952: *zamindar*s were allowed to keep up to 33 acres of land; no protection of the rights of tenants
2. Orissa Scheduled Area Transfer of Immovable Property Regulation, 1956: no monitoring
3. Orissa Survey and Settlement Act, 1958: large areas of land still not surveyed—640,752 acres, as per state records—but settled as government land anyway; 30,000 sq. km of areas under shifting cultivation by *adivasi*s not at all surveyed, but declared government land
4. Orissa Land Reforms Act, 1960 (amended in 1965, 1973, 1974): did not address the problem of share-cropping; no provision to record concealed tenancy

5. Orissa Government Land Settlement Act, 1962: to the extent of 70 per cent of land the state holds is meant to be distributed among the landless; very little progress, especially since 1980 and almost non-existent since economic reforms in 1991
6. Orissa Prevention of Land Settlement Act, 1972 (amended in 1982): penalty on encroacher and subsequent eviction; penalty was hardly a deterrent; massive scope for corruption

After independence, land ceiling was imposed to acquire land to be distributed among the landless. In Odisha, about 1.6 lakh acres of ceiling-surplus land has been distributed among about 1.4 lakh landless, of which about 1 lakh were *adivasi*s and Dalits. Like-wise, under the *Bhoodan* movement, the state had acquired about 6.4 lakh acres of land as donation, and distributed about 5.8 lakh acres of land to the landless (Patnaik, 2008).

However, these projected efforts were overshadowed by the state's lack of actual willingness to benefit the landless, as:

1. Land records in most of the cases were not properly done.
2. Large number of big landholders could easily conceal their assets and still keep holding to large areas of land.
3. Most of the beneficiaries could not till the land given to them as the original owners took it back by means of force or sly.
4. Those who could till the land could not benefit because of poor quality of the land given.
5. The state remains a mute spectator akin to being a direct partner in this structural crime.

A study by Regional Centre for development Cooperation, Bhubaneswar (RCDC)—National Institute of Rural Development, Hyderabad (NIRD) (2006) states:

> […] that the much talked about re-distribution of ceiling-surplus land has remained far from being impressive. Over the years, the poor and landless, especially the tribals, have not been able to benefit much from the ceiling-surplus land that has been transferred to them under various schemes. As per the survey conducted in three blocks of Koraput, the landless are not an improved lot even after re-distribution of the ceiling-surplus land. For, as much as 16% of the beneficiaries continue to struggle to get physical possession of the land allotted in their favour. Similarly, 30% of beneficiaries have record of rights for land which is not suitable for cultivation. While 42% beneficiaries are cultivating their land, 6.6% have either sold or mortgaged it… This goes on to show that most beneficiaries are not deriving any actual benefit from the land they legally own... It is interesting to note that, though allotted during 1976/77 and paying the cess regularly, the beneficiaries are still not in possession of the allotted land. The previous owners use their money and muscle power to regain possession over the surplus land. Besides this, there are problems of land acquisition (4%) and sale and mortgage of land (7%). (Patnaik, 2008)

In many cases, the beneficiaries are made to pay tax, even though they do not have physical possession of any land. As per records of the state revenue department (2006), there are about 4.6 lakh landless in the state and about 5.4 lakh acres of land still available to be distributed among them. Going by past experiences, even if these available lands are 'officially' distributed among the landless, the benefit will certainly go to landlords.

Various Land-Rights Movements in Odisha

In the fight to protect their cultures, resources and identities, while Dalits have long been pushed to the far end, *adivasi*s have practically waged a lonely battle all the way. In Odisha, *adivasi*s have retaliated against the takeover of their resources in an organised way as early as the first half of 19th century: Rendo Majhi not only lives on as a legend, his fight back against cultural appropriation and political aggression by the British and landlords then is now lending tremendous courage and strength to various *adivasi* movements in the state. Chakra Bisoyi, Laxman Majhi and other historical figures are doing the same too. However, the mode of repression by the state has not changed much in the 200 years. If the revolts led by Rendo Majhi and Chakra Bisoyi were crushed using the pretext of ending *Meriah*—human sacrifice—as believed by the British, today there is a massive campaign—both political and legislative—to end 'animal sacrifice' to deities of *adivasi*s, which is an intrinsic part of the rituals practised by the latter. And, what is threatening to replace the *adivasi* rituals in the state are practices—such as *yangya*, *jaagran*, *naam prahari*, *kirtan* and chanting of *Gayatri mantra*—alien to *adivasi*s, promoted not only by right-wing Hindu groups but also by organisations affiliated to parties such as the Congress and the ruling Biju Janata Dal, with overt support from part of the elite intelligentsia. If succeeded, the imposition of such religious practices will further pauperise the traditional folks; for, they will straightaway lose control of their own cultures and thereby their life-sustaining resources. However, encouragingly, *adivasi*s in many districts are now consolidating their collective strength around this single issue, which will have much ramification in coming times.

Reclaiming the Commons: Community Forests

Odisha has a remarkable history of community initiatives in protecting, nurturing and taking control of community resources (forests, village commons, water) since the turn of the 20th century. After being thrown off their natural homes—forests—by the British following the establishment of the Imperial Forest Department in 1964, communities had fought violently with the state, but without much success in regaining their grounds. With the state taking over forests as an entity

to be 'scientifically managed', the forest dwellers—mostly *adivasi*s—overnight became 'intruders' in their own homeland. Their livelihood practices, such as hunting-gathering and shifting cultivation, were termed unscientific and social evils. They were, in many instances, forced to take the plough or rendered bonded labourers or simply driven out of the forests into uncertain futures. How it amounted to 'cultural genocide' is evident in an account of anthropologist Verrier Elwin (1939), who lived many years researching with the Baigas in central India, that 'the Baiga were reluctant to take to the plough, as it was akin to tearing the breasts of your Mother, the Earth'.

The repressive mandates bestowed upon the Forest Department effectively criminalised rural communities, for their livelihood dependence on forest resources. Verrier Elwin demonstrated the incriminating process by quoting a forest officer as saying, 'Our laws are of such a kind that every villager breaks at least one forest law every day of his life.' So, most of rural India had little choice but to become 'criminals' in the course of their daily existence. For having resisted the takeover of their livelihood bases, tribes were even branded 'born criminal' by the British government and were made to be on the run. Post independence, they are still on the run, tagged as the 'de-notified tribes of India'.

The unbearable pressure of survival in such situations forced many tribal communities to finally take the plough even though it was blasphemous to them. By the turn of the 20th century, however, many forest communities also realised that they had no options other than taking the mantle of—even though it was an alien concept to them—'managing' their own forests, which the British could not foresee much problem in. Over decades, these communities took complete control over their commons and forests; and today in most community forests in Odisha, even the Forest Department cannot exercise its *zamindari* or landlordism. Practically more than one-third (2 million hectares) of the state's total forest area is today under the control of these community forest management (CFM) groups, which the Forest Department is trying hard to break by playing the JFM trick and pumping in humongous amount of money. Conflicts between the Forest Department and communities continue over ownership of forests and lands (Sahu, 2010a).

One of the major points of the conflicts has been the various unsustainable, commercial plantation and arbitrary harvesting projects being undertaken by the Forest Department in people's lands and forests, with direct impacts on the livelihoods of forest-dependent communities. The Forest Rights Act (FRA) 2006—what the government calls a tool to correct 'historical injustices' meted out to forest communities—has so far been reduced to be a joke by the Forest Department in the state. Consider this: as recently as June 2010, the Forest Department forcibly undertook commercial plantation even on the 104.87 acres of land that forty seven families of the Talaraidiha village of the Juang *pirh* in Keonjhar district now own, after being legally entitled to under the FRA 2006! Not only that, as a result of a massive protest by the locals on 30 July, forest officials visited Talaraidiha village on 11 August and told the forty seven families that they would

now get another piece of land elsewhere! And, the new piece of land they are talking about is some 10 kilometres away from the village and is actually a dense *sal* forest. Rabindra Juang, a local *adivasi*s, said, 'So, now what it means is that the Department will not go back on planting its chosen species for commercial purposes forcibly on people's land, and that the dense *sal* forest will be destroyed too!' (Sahu, 2010b).

Do we call it a 'travesty', or unchecked 'despotism'?

Conflicts were in fact compounded when the Forest Department came up with the JFM scheme in the 1990s and tried to appropriate community ownership of forest lands, much the same way as the Hindu 'power centres' have been doing to the *adivasi* milieus. Of late, with the Green India Mission and Reducing Emission from Deforestation and forest Degradation (REDD) waiting to 'unlock a treasury'—in the words of Minister Jairam Ramesh—for private bidders in India's forests, conflicts over ownership of land and forests are poised to take 'dangerous' turns.

First Armed, Militant Land-Rights Movement by the Left

Just as forest communities of Odisha found wisdom and ways in taking 'control' over their forests, *adivasi*s in many parts of the state during the past five decades started reclaiming their lands lost to non-*adivasi*s. The form of their struggle has been both armed and non-armed in specific cases.

The first coordinated, political movement in the state on the issue of 'land to the tiller' involving small and marginal farmers, the landless and *adivasi*s began in early 1960s in various parts of Odisha, especially in South Odisha. This was supported by the then Communist Party of India (CPI). In 1962, a project called 'food liberation' was launched by the movement in the Gunpur sub-division of Koraput district and Paralakhemundi area of Ganjam district, which instantly spread to even other far-flung areas. One example is the Rampur village of Sonepur district, mentioned earlier, in which about 20 acres of farmland was liberated from the *zamindar* and distributed among a few Dalit families in 1962–63. (However, in later years, these Dalit families again lost the land to one of the *zamindar's* kin in a court case.)

In 1967, after the multiple splits of the CPI, the movement in Odisha joined the faction called the All-India Coordination Committee of Communist Revolutionaries—later, the CPI (ML)—and formed the Orissa State Coordination Committee in 1968. It is only after that, that the movement, particularly the Chitrakonda Labour Movement, a constituent group led by Nagabhushan Patnaik, took to armed militant methods in attempts to restoring lost lands and livelihoods of the poor in the region. However, after the merger of the Odisha committee with its Andhra counterpart in 1969, it lost its tempo and approach. But, the armed land-rights movement continued until some top leaders were arrested in 1971 (Nayak, 2006). Thereafter, even though this militant movement went on for decades,

rather in a sporadic manner, its impact was not much visible until the turn of this century. The 1960s movement—though achieved very little—had, nonetheless, sown the seeds for many uprisings, both armed and non-armed, in the tribal heartland—such as the Narayanpatna land-rights movement, which is on the boil at the moment.

The Narayanpatna Land-Rights Struggle

Since 1994, the CPI (ML)-Kanhu Sanyal group has been active in South Odisha on land-rights issues under the banner of CMAS (Chasi Mulia Adivasi Sangh—union of farmers, wage workers and *adivasi*s). In 2004, *adivasi*s of the Narayanpatna block in Koraput district under the banner of CMAS started a campaign in the area to settle their land disputes with non-*adivasi* landlords. In just 5 years of their struggle—till 2009—they had succeeded in closing down liquor shops managed by landlords, hiking wage payments, stopping land-grab by non-*adivasi*s, restricting moneylenders and, more importantly, 'liberating' more than 3,000 hectares of land that originally belonged to them. As this 'non-violent' movement was gaining strength and threatening to spread to other areas, untold violent repression was unleashed by the state in 2009, directly steered by the non-*adivasi* landlords and indirectly by mining companies waiting in hope to mine the nearby hill ranges for minerals. At least three leaders of CMAS were killed by the police and about 200 *adivasi*s are put behind the bars; they are still languishing in jail without trial. The people's collective has been declared a Maoist outfit, only to legitimise the state repression on this historic land-rights movement. Many of the *adivasi* leaders are still on the run while the rest are living in untold fear and intimidation.

When large-scale exploitations by the powerful are ignored for decades and democratic resistances to them are treated with state violence, the state sends out a clear message that the only language it understands is that of 'violence'. Merely asking for restoring one's fundamental rights is considered unlawful! All over Odisha, there are nearly 1.5 lakh cases involving land against *adivasi*s and more than 45,000 cases of forest violations. So, what is the choice before the people?

Non-violent, Militant Land-Rights Movement by the Left

Meanwhile, despite the split of the CPI (ML) itself, 'democratic' land-rights movements in Odisha are in full swing steered by the CPI (ML)-Kanhu Sanyal group, the CPI (ML)-Liberation and the CPI (ML)-New Democracy in many tribal pockets. These non-violent, militant land-rights movements have achieved tremendous success in the past decade in liberating thousands of hectares of usurped lands and have distributed them among *adivasi*s and Dalits in South

Odisha, besides bringing them together on political platforms. This has not only empowered the *adivasi*s and Dalits to regain their socio-economic and cultural domains, it also has strengthened them to come together and fight back the forced takeover of their lands and resources by industries who are of late making a beeline to the tribal heartland of Odisha. One prime example of this is the strong resistance by the *adivasi*s and Dalits of Niyamgiri in Kalahandi and Rayagada districts.

The Niyamgiri Backlash

The Niyamgiri struggle has now rather been well known. 'Mining happiness...' is the tagline of Vedanta's billboards clogging the urban landscape in Odisha! Just ten years back, the whole Lanjigarh area on the foothills of Niyamgiri, comprising some twenty five odd villages inhabited by the Kutia Kandh tribe and Dalits, was a serene landscape dominated by *sal* forests, intersected by the Vamsadhara River emerging from the Niyamgiri. Today, Vedanta's alumina refinery has turned their pristine habitat into an industrial wasteland. Nearly 15,000 forest-dependent people have become refugees in their own homeland. Large tracts of forests have disappeared to make way for the factory, ash ponds, red-mud ponds, roads filled with hundreds of trucks, while the native forest dwellers are left rambling for some livelihood option somewhere.

Arjun Chandi of Kadamguda village, close to the refinery, rather puts the situation in perspective, 'How can you call this *development*? Someone else comes here, destroys your forests and lands, decimates your economic sources, pushes you onto the road, and makes a lot of money. Where is development? If you want development for us, first give our forests and lands back, and then talk about development.'

However, after closely witnessing the devastation at the foothills, the Dongria Kandhs who inhabit the Niyamgiri mountains for centuries have put up strong resistance against the proposed mining of bauxite on Niyamgiri, successfully deferring Vedanta's 'mining happiness' to the past. The mining lease now stands cancelled by government orders. The fight of the Dongrias was supported and strengthened by many civil-rights and land-rights groups. After successfully trampling Vedanta's 'mining happiness', they have now intensified the struggle to have the refinery closed down, as they see 'enormous dangers' to their culture and livelihoods from its very presence in the area. But, the state has not relented from repressing the *adivasi*s there; even after the scrapping of the mining project, police and paramilitary forces have attacked Dongria villages many times and have tortured the *adivasi*s. The state is trying to even declare Niyamgiri as 'Maoist-infested', in attempts to take complete control of the region. The locals say that the state is doing this, only to open ways for Vedanta to start mining there in future.

Apart from the struggle to protect Niyamgiri's ecology, cultural ethos and economic richness from an industry's onslaught, Niyamgiri rather offers many more travesties in the course of its existence especially with regard to being part of the sovereign state, which could be clues to the plights of many other tribal groups elsewhere.

1. The Forest Department continues to harass the *adivasi*s; they have in fact opened a timber-trading centre near Lanjigarh. The reason for the forests on Niyamgiri still remaining dense and virgin is because the Dongrias worship Niyamgiri as their *Niyam Raja*—meaning the supreme lord of laws—and therefore have kept the forests inviolate for ages. The Forest Department, however, sees revenue in its green spread.
2. Non-*adivasi*s around the foothills who have migrated in from other areas of the state and also from adjoining states continue to exploit the *adivasi*s by forcing—often intimidating—them to sell forest produce at a dirt cheap price.
3. The Dongria Kandh Development Agency (DKDA) is the biggest of all exploiters in all possible forms.
   - The agency plays a major role in introducing and linking traders to the Dongrias, instead of protecting the latter from the former.
   - The agency is primarily responsible for the increasing disappearance of traditional seeds Dongrias are used to farming and introducing them to hybrid seeds, making them dependent on seed traders. This also impacts the nutritional intakes of the Dongrias, which is crucial considering their traditional lifestyle.
   - The agency runs programmes to motivate the Dongrias to adopt modern tools even though they do not need them, which only results in increasing their dependence on the market controlled by powerful strangers.
   - The schools run by the DKDA—if at all run—have been instrumental in subverting the cultural practices of the Dongrias in the pretext of bringing them to the 'mainstream'. Cultural appropriation begins the moment a Dongria child is enrolled to a school. For example, if the child's name is Drika Pusika, he would be enrolled as, say, Deepak Pusika, as though the name Drika bears some sense of backwardness and needs to be sanitised! In the school, their traditional dress code is banned, food habit changed and cultural behaviours altered, alienating them not only from their society but in many cases from their immediate families. One Dongria youth once asked me, 'If P. Chidambaram could go to Parliament wearing his traditional *dhoti* without being questioned by anyone, why am I denied to wear my traditional attires to school?'
   - The DKDA also works as an agent for Vedanta in motivating the Dongrias not to oppose the mining project.

4. The success—so far partly though—of the Niyamgiri anti-mining movement has gained strength from the history of land-rights movements around the foothills for the past decades. First it was the CPI (ML)-Liberation that organised the landless *adivasi*s and Dalits in the 1990s to stake claim over hundreds of acres of land in and around Muniguda and Bissamkatak areas. The movement, however, soon fizzled out owing to the absence of effective leadership; the weakening of the movement also interestingly coincided with the entry of Vedanta. Then, the Lok Sangram Manch under the aegis of the CPI (ML)-New Democracy launched a militant, democratic land-rights campaign in the foothill villages of Niyamgiri towards the beginning of this century. This movement, which is still on full swing, has so far reclaimed hundreds of acres of land usurped by landlords and distributed them among the native *adivasi*s and Dalits. It is this collective strength that later channelised into the fight against Vedanta and the state government to save Niyamgiri from mining. However, around Lanjigarh, where Vedanta's alumina refinery today stands tall, due to the absence of such a movement with clear political stance and goals the company could trample people's opposition and go ahead with the construction and operation of the plant.

Now that Vedanta is denied entry to the Niyamgiri hills, the local struggle group is looking into these issues, long ignored by civil-rights groups.

People's Resistance Movements: The Missing Links

As the pressure on natural resources mounts in order to push farther up neoliberal consumption, dubbed as 'national interests', there is a full-fledged 'war' out there! The state is, of late, at war with its own people. Economist Amit Bhaduri puts the situation in perspective:

> ...The political system of democracy is acclaimed for contributing to rising mass consumption by invading natural resources everywhere under various guises of legal and illegal trade, which trample on the democratic rights of those who cannot defend them. In post-colonial societies, decolonization merely changed the direction but not the goal of this violent hunt for natural resources. As countries that were once formal or informal colonies gain political independence, the more successful among them join the march of civilization in the name of 'development' only to become colonizers themselves. The irony of history does not end there. The formerly colonized countries are relatively new in the race, and handicapped by an inherited past of economic and military weakness in a world of stronger competitors. And so the direction and the target of the hunt change. If a lack of strength does not allow them to conquer other lands and people, regions inside the country are identified for the hunt of natural resources. Imperialism turns inwards; and the latecomers in the race wage war against their own citizens, but this time in the name of developing them. (Bhaduri, 2010)

The land-grab through cultural appropriation that started centuries back (and that still continues) has thus taken a new and more dangerous form: large-scale resource-grab at one go by selling glittering, abstract dreams of growth and development. And, in the centre of this heinous game of selling out people's resources is the elite, middle class, which acts much like a 'comprador agency' to the bourgeoisie of the so-called 'globalised' world, with its strong political dominance over the larger economic, societal and cultural domains enshrined in the 'system'. This 'comprador agency' is always busy erecting walls to safeguard the 'system' that is ever evolving to suit the dominant political and economic order of the day and to ensure that people's political, cultural and economic domains stay outside the 'system', thereby making the process of resource plunder uncontested and smooth. Trying to break this pattern, from outside the 'system', are two prominent phenomena: (*a*) democratic resistance movements, and (*b*) the armed Maoist movement!

Odisha has rather become the most chosen laboratory for the Indian 'republic' to realise its neoliberal dreams, with the state government laying a red carpet for industries of all hues and profiles to come and take over people's lands and resources for profits. Odisha is also the state where people's resistance movements have successfully halted for long neoliberal forces from realising their nefarious dreams to a large extent, despite brutal repression and even cold-blooded murders. Across the length and breadth of the state, there are voices of dissents by organised struggle groups: from Kalinganagar in Jajpur district to Kashipur in Rayagada; from the anti-POSCO movement in Jagatsingpur to the farmers against industrial colonisation of people's water sources in Sambalpur and Bargarh.

At the heart of the 'politics' of hundreds of these resistance groups is the sole objective of restoring people's resources in people's hands. Despite the spread of democratic resistance movements across the state with considerable success in stalling large-scale land-grab by corporations, however, what is disturbingly conspicuous is their inability to place 'land rights' at the centre of the conflict. In the heat of fighting giant corporations, the fundamental issues of 'resource politics' within the society somehow have not made to the larger agenda of these movements. The issues that are most strikingly ignored by most anti-industry/anti-dam/anti-development movements are the questions of the landless and the ongoing internal economic colonisation of traditional cultures, which are rather at the heart of the crisis that precedes corporate plunder of people's resources. This is the precise reason why democratic movements have so far failed to consolidate their efforts to provide a viable alternative to the political vacuum created by none other than the Indian state. And, this is also the reason why the armed Left radicalism finds space to spread so successfully, much to the delight of the state, for democratic movements are supposed to be about 'democracy'; and it is 'democratic values and practices' that the state is so visibly scared of, and not so much of the guns of the rebels! Therefore, in order to keep 'dissent' alive in this democracy—meaning, to keep any hope of a political alternative alive within the democratic framework—it is of utmost importance that democratic movements do not lose touch with people's politics and their 'aspirations'.

Spread of the Maoist Movement

India's economic reforms in 1991 and their increasing impacts on the lives of the people thereafter had many a thing altered at various levels—especially in terms of political consequences and people's responses. The sudden and unprecedented attack on people's land and resources on massive scale by the state and corporations stirred people's consciousness, leading to an unprecedented rise in people's political participation. For this time the threats seemed to be enormous and final, which could wipe out their identities—and even existence—from the face of the earth. So, since 1991, grassroots India has been busy—as never before—in attempts to protecting itself.

People's political activism during this period, as discussed, came in two dominant forms. One, thousands of democratic resistance groups confronted the state upfront, questioning its 'anti-people' politics and 'anti-ecology' economics. As the resistance grew in intensity, the state repression grew manifold—both in terms of physical violence and intimidation, using all sorts of state machineries. In the last ten years, nearly fifty people—mostly *adivasi*s—in Odisha have been killed by police, thousands put in jail, and tens of thousands are being intimidated on a daily basis. The resistance, however, is still growing and spreading to newer areas and people.

On the sideline of this massive political upheaval on the ground, the armed radical Left—the CPI (Maoist)—also silently and rapidly spread its base to newer areas and people. This may seem a bit ironical as to how two different political domains gained grounds simultaneously in same geographic areas; but it certainly points to the fact that people's political consciousness and participation in political processes have increased unprecedentedly on the ground, especially in the *adivasi* heartland.

We will not go into details of the functioning and activities of these two political domains; rather we discuss briefly as to how this seemingly unusual political scenario was made possible to happen. Some of the observations are as follows.

1. People on the ground who have suffered for centuries—and more so in 'democratic' India—are looking for 'definitive and viable political alternatives'. Neither rhetoric nor polemics works anymore.
2. State's blatant and open disregard for 'democracy' and Constitutional values has had people disillusioned about the very idea of 'democratic processes' while choosing an alternative political space.
3. State's repression on democratic movements and the inability of democratic movements in coming together to fight back adequately and offer a 'definitive and viable political alternative' have many turn away from democratic processes. There are even instances in which democratic movements have not even shown up the courage to own up their own members after they were killed by the state in cold-blood by labelling them Maoists. As a result, though this is not true to all democratic processes, such as in Niyamgiri, many democratic movement groups are now intervened, if not controlled, by the Maoists with approval of local communities.

4. Democratic movements are often driven by limited political agendas, such as simply to throw out a company or fight for water rights to dominant farmers; and they largely ignore age-old conflicts, such as the ones faced by the landless and small farmers in entrenched feudal settings, or the ones grappling forest communities on face of the ruthless landlordism of the Forest Department for the past 150 years.
5. Democratic movements are, in many cases, also characterised by the 'aspirations' of a few leaders, instead of representing the larger 'aspirations' of the people and the political positioning of the entire collective they lead, creating disillusionment among the communities involved—thereby leading them to resort to 'confused' options.
6. The weaknesses of democratic movements—and not to mention the terror of the state—open up space for the radical Left to pitch in, who 'appear' to be offering 'definitive' political options—howsoever debatable they may be in intellectual and academic discourses—to people, by directly and purposefully 'engaging' themselves with the people, often with visible consequences.
7. As people on the ground 'perceive', land rights lies at the core of the Maoist agenda that naturally make their enemies common: feudal lords, traders, forest officials and the police, contractors, the metal industry or anyone who exploits the people—in a nutshell, the 'system'.
8. So long as the state does not learn how to respect 'democracy' and/or democratic movements do not put in place a 'political agenda' that unambiguously reflects the larger 'aspirations' of the people and decisively challenge the 'system' from outside, with all its historicity and cultural continuity, it is certain that militant Left radicalism is in for a rapid rise in coming years. Whether it is good or bad is a different debate—and, a very critical one!

Meanwhile, democratic movements have a huge task to complete, voluntarily: to reflect upon their 'failures' on a broader frame, rather than rejoicing over the limited successes they have achieved so far. Without that, there cannot evolve any 'definitive and viable political alternatives' howsoever intensive and time-consuming the political processes they are engaged in! The harsh reality is that people with their traditional resources are here pitted against the demonic might of the state, which has of late become war-hungry, covertly fed by the capitalist colonisers and overtly pushed by the imperialist economic powers of the so-called globalised world—all eyeing to plunder people's resources, at whatever cost! For them, democratic values are no longer sacrosanct; profit is!

References

Bhaduri, A. (2010). Recognize this face? *Economic and Political Weekly*, XLV(47) 20 November: 10–14.

Elwin, V. (1939). Civilising the savage. In R. Guha (Ed.), *Social ecology*, 1998 (pp. 249–74). New Delhi: Oxford University Press.

Kumar, K., Choudhary, P.R., Sarangi, S., Mishra, P., and Behera, S. (2005). A socio-economic and legal study of scheduled tribes' land in Orissa. [Unpublished] Commissioned by the World Bank, Washington DC.

Nayak, N. (2006). Maoists in Orissa growing tentacles and a dormant state. In K.P.S. Gill (Ed.), *Faultlines: Writings on conflicts and resolutions*, vol. 17 (pp. 127–51). New Delhi: Institute of Conflict Management.

Patnaik, S. (2008). *Status report on land rights and ownership on Orissa*. New Delhi: UNDP India. p. 74.

Prasad, A. (2001). Hunger and democracy: The political economy of food in adivasi societies. *Frontline*, 18(20), 29 September–12 October. Retrieved from http://www.frontlineonnet.com/fl1820/18200540.htms

Sahu, S.K. (2010a). The taming of the wilds. *Infochange*. Retrieved from: http://infochangeindia.org/Environment/Community-forests-of-Orissa/The-taming-of-the-wilds.html, on 5 January 2011.

———. (2010b). Treasure hunt in the Kendujhar forests. *Infochange*. Retrieved from: http://infochangeindia.org/201008288483/Environment/Features/Treasure-hunt-in-the-Kendujhar-forests.html, on 5 January 2011.

———. (2011). Your gods are mine. *Down to Earth*, 1–15 January: 58–59.